

Court No. - 3

Case :- WRIT - C No. - 22657 of 2017

Petitioner :- Awadhesh Kumar Upadhyay

Respondent :- U.P. Power Corporation Limited & 4 Others

Counsel for Petitioner :- Dharendra Kumar Srivastav

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Heard Mrs. Anamika Srivastava, learned counsel for the petitioner and Sri Mahboob Ahmad who has accepted notices on behalf of respondents.

By means of this petition filed under Article 226 of the Constitution of India, the petitioner has challenged the recovery certificate dated 08.11.2016 of Rs.1,85,043/- issued in his name.

Learned counsel for the petitioner contends that against the recovery certificate dated 08.11.2016, the petitioner has filed a representation before the respondent no. 3, Executive Engineer, Uttar Pradesh Power Corporation Limited, Purvanchal Vidyut Vitran Division-II, Mughalsarai, Chandauli but without deciding the same and without passing final order of assessment, the respondent no. 3 sent the impugned recovery certificate, which is totally arbitrary and illegal. Learned counsel for the petitioner further contends that the mandatory provisions of Section 126(3) of the Electricity Act, 2003 has not been followed in the present case.

In reply, learned counsel for the respondent Vidyut Vitran Nigam has tried to justify the impugned recovery certificate.

From a perusal of the record, we find that the recovery certificate issued to the petitioner does not give the basis on which they were assessed to pay Rs.1,85,043/-. This Court in the case of **Ashok Kumar and others Vs. State of U.P. and others, 2008(6) ADJ, 660 (DB)** has considered the provisions of the U.P. Electricity Supply Code, 2005 to be followed for assessment in case of theft of electricity. One of the essential requirement is that provisional notice should invite objections and also indicate a date and time for hearing of the consumer. The procedure adopted by the respondents in making recovery certificate is de-hors the provisions of the U.P. Electricity Supply Code, 2005 and is in gross violation of clause 6.8(b) of the said Code and, thus, the impugned recovery certificate issued against the petitioner cannot be sustained.

Consequently, the writ petition is allowed. The impugned recovery certificate dated 08.11.2016 issued by the respondent no. 3 is hereby quashed. However, it shall be open to the respondent to proceed against the petitioner in accordance with law, and the procedure prescribed expeditiously within a period of three months.

Order Date :- 23.5.2017/AKT